

FINDINGS OF FACT

The Court makes the following findings of fact:

1.

The defendant was charged with those offenses indicated on Side One.

2.

Said charges were disposed of as indicated in the Petition on Side One.

3.

All related charges have reached final disposition.

4.

There is a civil revocation record that resulted from the offense(s) the petitioner is seeking to expunge.

5.

The defendant

is is not

eligible for an expunction of the offense(s) listed on Side One. If not eligible, it is because:

ORDER

Therefore, the Court hereby ORDERS:

1.

The petition is granted. It is ordered that any and all entries relating to the defendant's apprehension, charge, trial, or conviction and any civil revocation of his/her drivers license resulting from the criminal charge shall be expunged from the records of the court. All law enforcement agencies, the Department of Adult Correction, the Division of Motor Vehicles, and any other State or local government agency identified on Side One and on any AOC-CR-285 form that is attached to this petition shall expunge from all official records any entries relating to the person's charge, conviction, if any, and any civil revocation of his/her drivers license resulting from the criminal charge. No agency shall expunge a record of a civil revocation entered pursuant to G.S. 20-16.2, no agency shall expunge a record of a civil revocation prior to the final disposition of any pending civil or criminal charge based upon the civil revocation, and the Division of Motor Vehicles shall not expunge records for which expunction is otherwise prohibited by G.S. 15A-151.

2.

For the reason(s) identified in Finding No. 5, the petition is denied.

NOTE TO CLERK: If denied, file this Order in the case file. Upon expiration of the deadline for appeal from a denial of this Order, destroy any documentation provided with the petition, such as a criminal history report. If granted, send a certified copy of this Order to the defendant at the address listed on Side One or an updated address as provided by the petitioner.

Date

Name Of Presiding Judge (type or print)

Signature Of Presiding Judge

CERTIFICATION BY CLERK

I hereby certify that this form is a true and complete copy of the original in this case, and if granted, a certified copy of this Order was sent on the date shown below to the defendant, the State Bureau of Investigation, the Department of Adult Correction, the Division of Motor Vehicles, and to the arresting agency and any other State or local government agency identified on Side One and on any attachment to this petition.

Date

Name (type or print)

Signature Of Clerk

Dep. CSC

Asst. CSC

Clerk Of Superior Court

SEAL

NOTE TO CLERK: If granted, **always** send a certified copy of this Order under seal to the defendant, to **all** the agencies listed in Certification By Clerk above, and to the NCAOC. Send copies for the arresting agency and additional agencies to the addresses provided by the petitioner. Send SBI, DAC, DMV, and NCAOC copies to:

State Bureau of Investigation
Attn: Expunction Unit
3320 Garner Road
Raleigh, NC 27610

NC Department of Adult Correction
Attn: Combined Records Section
4226 Mail Service Center
Raleigh, NC 27699-4226

NC Division of Motor Vehicles, Driver and
Vehicle Services, Driver Assistance Branch
Attn: Hearings/Adjudication Unit
3118 Mail Service Center
Raleigh, NC 27699-3118

NC Administrative Office of the Courts
Attn: Records Officer
PO Box 2448
Raleigh, NC 27602

NOTE TO DISTRICT ATTORNEY: If this petition is granted, the clerk of superior court will send the defendant a certified copy of the final order for his or her records at the address listed on Side One. If the defendant has moved, you must notify the clerk in writing of the defendant's change of address in order for the defendant to receive a certified copy. After the case is expunged, the clerk of superior court will have no record of the case and will be unable to provide the defendant with any documentation of the case. This includes the expunction order; it will be destroyed with the case file.